



May 21st 2018 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=icJv1k92IRE
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Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The Delaware County Commissioners meeting was called to order on Monday, May 21, 2018, at 9:00 a.m. by the presiding officer.
- **Attendance:**
 - **Members Present:** Mr. Henry, Ms. Reagan, and Mr. King (Presiding Officer).
 - **Members Absent:** None noted.
 - **Presiding Officer:** Mr. King.

Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Approval of Minutes:** The board considered the approval of the meeting minutes from May [date/sound unclear], 2018.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Ms. Reagan: yes, Mr. Henry: yes, Mr. King: yes).
- **Tabled Business:**
 - *Old Town Public Library Board:* A motion was made and seconded to remove the Old Town Public Library appointment from the table.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry: yes, Ms. Reagan: yes, Mr. King: yes).

- *Board Appointment:* A motion was made and seconded to place Kim Pike on the Yorktown Public Library Board.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry: yes, Ms. Reagan: yes, Mr. King: yes).
- *Medicaid Agreement:* Staff reported waiting on revised agreements from the state regarding Medicaid. The item remains tabled for a future meeting.

Substantive Business & Board Action

- **00:02:29 Presentation: Mississippi Water River Cleanup & Camp Prairie Creek Updates**
 - **Sponsor / Presenter:** Mr. Jason (Delaware County Stormwater Management Department).
 - **Deliberation Summary:** Mr. Jason provided an update on two programs. First, the Mississippi Water River Cleanup is being revived with a steering committee, scheduled for August 18, 2018, from 8:00 a.m. to noon (exact location and pull-off spots to be determined). Partners include the Delaware County Soil and Water Conservation District and local high school environmental clubs. Second, he highlighted the 10th anniversary of Camp Prairie Creek, a free environmental education summer camp for 1st through 8th graders sponsored by the Muncie Sanitary District and Delaware County Stormwater Management, running July 23<U+2013>27, 2017/2018, with registration opening in late June.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Information presentation only; no formal board action required.
- **00:09:55 Joint Use & Maintenance Agreement: Morrison Road Sidewalks**
 - **Sponsor / Presenter:** Mr. Bookout (Delaware County Economic Development) / County Attorney.
 - **Deliberation Summary:** Presented as a joint use and maintenance agreement between the Indiana Department of Transportation (INDOT) and the Delaware County Redevelopment Commission regarding sidewalks on Morrison Road. County counsel reviewed and approved the standard agreement.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Ms. Reagan: yes, Mr. Henry: yes, Mr. King: yes).
- **00:10:56 Interlocal Cooperation Agreement: Yorktown & Delaware County Street/Road Maintenance**
 - **Sponsor / Presenter:** County Staff / Attorney.
 - **Deliberation Summary:** A longstanding interlocal cooperation agreement between the Town of Yorktown and Delaware County, originally entered around

2011<U+2013>2012 following Yorktown's reorganization with Mount Pleasant Township, was brought forward for an extension. The agreement covers road maintenance and improvements in Mount Pleasant Township outside town boundaries. Pete Olson expressed support for continuation.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved by Roll Call Vote (Ms. Reagan: yes, Mr. Henry: yes, Mr. King: yes).
- **00:12:09 Railroad Spur Inspection & Grade Crossing Warning Equipment Agreement**
 - **Sponsor / Presenter:** County Staff.
 - **Deliberation Summary:** Renewal of a railroad inspection and warning equipment agreement expiring June 1st. Rates remain unchanged except for the addition of a clear line item for on-site repairs at \$50 per hour.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry: yes, Ms. Reagan: yes, Mr. King: yes).
- **00:12:48 Ordinance No. 2018-04: Moratorium on Certain Uses in Farming Zones (CAFOs)**
 - **Sponsor / Presenter:** County Attorney / Planning Commission.
 - **Deliberation Summary:** Second reading of an ordinance establishing a moratorium on certain uses (specifically Concentrated Animal Feeding Operations, or CAFOs) within farming zones in Delaware County. The Planning Commission previously heard the item. An amendment was offered to change the sunset date from a flat one-year period to October 1, compelling the Planning Commission to finalize CAFO regulations by that date. Commissioners clarified that the moratorium does not apply retroactively to permits already granted (noting one operation had already received necessary local permits).
 - **Item-Specific Public Input:** None during this specific agenda item (see general public comment).
 - **Action & Vote Disposition:** Approved as amended/corrected (sunset date set to October 1) by Roll Call Vote (Ms. Reagan: yes, Mr. Henry: yes, Mr. King: yes).
- **00:14:42 Surplus Property Declaration & GovDeals Auction Setup**
 - **Sponsor / Presenter:** Mr. Jason Rogers (Delaware County University/Property Management Director).
 - **Deliberation Summary:** Mr. Rogers provided an update on utilizing "GovDeals" for county surplus property auctions. After resolving digital and administrative issues with a GovDeals representative, the department presented an initial sample list of surplus items (including vehicles, heavy equipment, and office equipment). Proceeds from auctions will be routed directly back to the originating department based on item listings. Future general office equipment will be listed under miscellaneous categories to streamline board approvals.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Regan/Regan: yes, Mr. Henry: yes, Mr. King: yes).
 - **00:20:34 Payment of Claims**
 - **Sponsor / Presenter:** County Staff.
 - **Deliberation Summary:** Presentation of county claims for payment totaling \$3,730,532.26.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Ms. Reagan: yes, Mr. Henry: yes, Mr. King: yes).
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Open Public Comment / Citizen Forum

- **00:21:01 Jenny Irving:** Expressed support for the passage of the CAFO moratorium ordinance, but strongly criticized the commissioners for failing to hold an emergency/special meeting immediately after the Planning Commission approved the ordinance. She argued that the delay allowed building permits for a contentious CAFO project to be issued beforehand, giving citizens a “runaround” and risking potential legal fallout.
 - *Commissioner Response:* Commissioner Henry explained that he was tending to his wife’s health issues on Tuesday, attempted to email county counsel regarding a special meeting on Wednesday (though the email was inadvertently sent to the wrong address), and realized by Thursday that 48-hour statutory notice requirements made Monday the earliest possible meeting date.
 - **00:25:11 Linda Hansen:** Speaking on behalf of the League of Women Voters, echoed Jenny Irving’s sentiments. Expressed deep disappointment regarding the commissioners’ lack of due diligence in scheduling a swift vote on the moratorium before permits were issued, asserting that the county’s citizens were ill-served.
 - **00:26:26 John Stevenson:** Spoke on behalf of residents of West Lawn to express gratitude. Thanked Commissioner Reagan and the Delaware County Highway Department for professionally and neatly completing the repaving of their neighborhood roads following a petition brought forward a year ago.
 - **00:27:33 Richard Ramsay:** Also representing the West Lawn area, thanked the board for the newly paved roads, noting that children can now safely ride bicycles down the street without navigating potholes, and praised public officials who are frequently subjected solely to complaints.
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Administrative Updates & Adjournment

- **Staff / Board Announcements:** Monthly and weekly reports from weights and measures were acknowledged as received by the board.

- **Adjournment:** A motion to recess/adjourn was made, seconded, and approved by voice vote. Time not explicitly stated.

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